MIDLANDS FINANCIAL TRUST
versus
CITY OF HARARE
and
CITY OF HARARE WORKS & TOWN PLANNING COMMITTEE
and
ACTING DIRECTOR OF URBAN PLANNING FOR CITY OF HARARE
and
TRYMORE MUDERERE
and
DEVELOPMENT STUDIO AFRICA (PVT) LTD
and
AFRICAN SENTIMENTALS (PVT) LTD

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 20 March 2026 and 23 April 2026

Court Application for Review

Advocate T Mpofu, for the Applicant
Mr N.B Nyathi, for the First, Second and Third Respondents
Advocate T Zhuwarara, for Fourth and Fifth Respondents
Advocate S Banda, for Sixth Respondent

MUCHAWA J: This is a court application for review in which the initial application had not included the sixth respondent. The following draft order was initially sought:

> "IT IS ORDERED THAT:
> 1. The application for review be and is hereby granted.
> 2. The second respondent's decision dated 30th July 2024, granting a permit to fourth respondent authorizing the establishment of a Petrol Filling Station, a Drive Through Restaurant, a Convenience Shop and Office on Stand 3188 Avondale (1 Elsworth Road, Belgravia) Harare be and is hereby set aside.
> 3. The first, second and third respondents shall jointly and severally pay costs of this application on the legal practitioner and client scale."

The first to fifth respondents had taken preliminary points. In terms of the order issued by Honourable DEME J on 13 March 2025, the points *in limine* raised by the first to third

respondents were withdrawn. The point *in limine* raised by the fourth and fifth respondents on the need to exhaust other available remedies first as provided in s 38 of the Regional, Town and Country Planning Act [*Chapter 29:12]* was dismissed.

The point *in limine* on material non-joinder of the sixth respondent was upheld, and the sixth respondent was joined to the proceedings. Service of the application was to be done within ten days from the date of the order and the matter would proceed in terms of the Rules. The matter was removed from the roll to allow the parties to comply with the order.

The matter was allocated to me after the parties had complied with the order.

BACKGROUND FACTS

The second respondent granted a permit in favour of the fourth respondent on 30 July 2024 for establishment of a Petrol Filling Station, Drive Through Restaurant, Convenience Shop and Office on Stand 3188 Avondale, otherwise known as No. 1 Elsworth Road, Belgravia, Harare. The applicant is the owner of an adjacent stand No. 3187 Salisbury Township, otherwise known as No. 3 Elsworth Road Belgravia. The applicant uses its land as commercial offices.

Upon being advised of the application made by the fourth and fifth respondent for a permit for the outlined activities, the applicant lodged an objection. The application for review is brought on the following grounds:

1. That second respondent had no jurisdiction to make a decision to grant the permit.
2. That the permit was granted to a person who had not applied for it.
3. That the process was fraught with gross irregularities and violated the principles of natural justice.
4. That the first and second respondents failed to comply with the mandatory provisions of s 26 of the Regional Town and Country Planning Act .
5. That the first and second respondents acted in a grossly irregular manner by failing to comply with the provisions of the Administrative Justice Act and the Constitution of Zimbabwe.

The application was opposed. At the hearing Mr *Mpofu* raised certain points *in limine*.

The first point was that the sixth respondent being a company should only appear in court through a legal practitioner. Though a legal practitioner was representing the sixth respondent, there had been no compliance with Rule 59(20) which mandates, in peremptory

terms, the filing of heads of argument. In terms of Rule 59(21) such heads of argument shall be filed at least 5 days before the hearing. Rule 59(22) sets out the consequences of failure to file heads of argument as prescribed. The respondent concerned shall be barred and the court may deal with the matter as unopposed or direct that it be set down for hearing on the unopposed roll.

Mr *Banda* did not dispute that no heads of arguments had been filed. He said that the sixth respondent had been belatedly joined to the proceedings and only filed opposing papers on 1 April 2025. It was argued that as the sixth respondent was represented by the same legal practitioners representing fifth and sixth respondents, they had elected to abide by the heads of arguments filed by the fourth and fifth respondents. This was allegedly done by way of a letter filed on 6 June 2025.

The Rules are very clear. They are peremptory. The sixth respondent is barred and did not seek any condonation at all. In this case, the court's hands are tied. The route followed in *Metallon Gold Zimbabwe (Pvt) Ltd* v *Sheriff of Zimbabwe* HH 568/25 which is to treat the matter as unopposed is the only one open. In the circumstances the court will deal with the matter as unopposed as against the sixth respondent.

The second point relates to the first, second and third respondents. In its answering affidavit, the applicant took issue with the first, second and third respondents' notice of opposition and opposing affidavit. These were allegedly not served on the applicant, and no proof of service was provided to prove any such service.

Mr *Mpofu* submitted that Rule 59(8) provides that the respondent shall serve copies of the notice of opposition and opposing affidavit upon the applicant and as soon as possible thereafter, but not later than forty-eight hours, shall file with the Registrar proof of such service. Rule 59(9) imposes a bar on a party who has not complied.

Mr *Nyathi* did not waste the court's time and concedes that they were indeed barred. I will therefore deal with the matter as unopposed against the first, second and third respondent.

This leaves only the fourth and fifth respondents before the court. Mr *Mpofu* however submitted that they were not before the court as the only reason they were dragged to court was that the fourth respondent was the designated applicant on the permit, but it appears that

the fifth respondent submitted the application for the permit. In their opposing affidavit, the fourth and fifth respondent pointed to the now sixth respondent as the owner of Stand No. 3188 Avondale (No. 1) Elsworth Road, Belgravia and specifically said the permit in issue was not granted to either of them but to sixth respondent. This is why the sixth respondent was joined to the proceedings. Mr *Mpofu* argued that the fourth and fifth respondents had no interest in the order once the sixth respondent was joined.

Furthermore, Mr *Mpofu* contended that the impugned decision is that of the second respondent and it is not that of the fourth and fifth respondent.

The case of *Dhlamini & Ors* v *Minister of Lands* HB 85/25 was referred to. In that case the impugned decision was that by the Minister to acquire land. The Minister was barred but not the beneficiaries. None of the beneficiaries could answer in place of the Minister. It was held that both the decision maker and the beneficiary were both not in court.

Mr *Zhuwarara* used the analogy of guests invited to a wedding to say the applicant invited them by citing them and cannot now turn around and deny them an opportunity to partake of the feast laid out. To this Mr *Mpofu* retorted they were only invited because the document on p19 of the record gave the impression that they were the permit holders and they disinvited themselves when they pointed to the sixth respondent as the correct guest thus losing their interest in the matter.

In the case of *Dhlamini & Ors* v *Minister of Lands, Agriculture, Water and Rural Resettlement & Ors* is instructive. It was held therein as follows:

> "The Minister whose conduct is the subject of this litigation is not before the court. The second and seventh respondents have not filed any opposing papers. The court is therefore deprived of the reasoning of the State functionaries in acting in the manner they did in acquiring the farm. None of the present respondents can answer the challenge to the acquisition process. They did not make that decision. As a result, they are not central to or helpful in resolving the issues that require determination."

Similarly, the fourth and fifth respondents *in casu* did not make the impugned decision. They cannot answer or be helpful to the court in the absence of the first, second and third respondents. More so, they expressly stated that they have no interest in the matter and substituted themselves with the sixth respondent, who too is not before the court.

The inescapable conclusion is that there is no one remaining before the court. The first, second, third and sixth respondents are barred whereas the fourth and fifth respondents have

no interest in the matter and cannot answer for the decision maker. I uphold the points *in limine* and will deal with the matter as unopposed.

The absence of any valid opposition before the court is not however a license to grant the relief sought without any scrutiny. My perusal of the papers before me satisfies me that the applicant has made a good case for the granting of the relief sought.

Costs have been prayed for against the first, second and third respondents on the legal practitioner and client scale. Costs on a higher scale are awarded only in exceptional circumstances where a party's conduct is mischievous and objectionable and the cause of all the costs. See *Davidson* v *Standard Finance Ltd* 1985 (1) ZLR 173 (HC). The award of costs is a matter wholly within the discretion of the court which discretion must be exercised on the grounds upon which a reasonable person could have come to that conclusion. The circumstances of this case, the conduct of the parties, amongst other things, are important considerations.

In casu the first, second and third respondents conceded their failure to comply with the rules and did not waste the court's time. Costs on a higher scale are therefore not justified.

I accordingly grant the following order:

1. The application for review be and is hereby granted.
2. The second respondent's decision dated 30 July 2024, granting a permit to the sixth respondent authorizing the establishment of a Petrol Filling Station, a Drive Through Restaurant, a Convenience Shop and Office on Stand NO. 3188 Avondale also known as No. 1 Elsworth Road, Belgravia, Harare be and is hereby set aside.
3. The first, second and third respondents shall jointly and severely pay costs of the application on an ordinary scale.

MUCHAWA J…….

Mawere Sibanda, Applicant's Legal Practitioners
Gambe Law Group, First, Second and Third Respondent's Legal Practitioners
Mberi Tagwirei & Associates, Fourth, Fifth & Sixth Respondent's Legal Practitioners